

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

S.P.F. LOGISTICS, INC., *Complainant*

v.

HAPAG-LLOYD AG, *Respondent*.

DOCKET NO. 24-24

Served: June 25, 2025

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SCHEDULING ORDER

On June 16, 2025, the parties filed a joint status report and proposed discovery schedule (“JSR”). The parties state that they have already exchanged initial disclosures and are reaching out to the Commission’s Office of Consumer Affairs and Dispute Resolution Services. The parties do not request and have not shown that an oral hearing is necessary. *See* 46 C.F.R. 502.62(a)(5). The initial portions of the proposed schedule are reasonable and are adopted.

The proposed deadline for rebuttal expert reports is three months after the deadline for identifying experts and providing expert reports. Similarly, the proposed deadline for briefing is three months after the deadline for the close of discovery. These delays are excessive and will not be approved. Instead, the parties will be required to file by September 15, 2025, a joint status report that addresses: (1) the status of discovery, specifying what needs to be completed, (2) whether parties anticipate utilizing expert witnesses and rebuttal expert witnesses, (3) the last time settlement offers were exchanged (but not the content of the offers or discussions), and (4) a proposed schedule for completing discovery and briefing.

The parties also propose a deadline for dispositive motions at the close of discovery. Dispositive motions at the close of discovery are disfavored. Rather, it is more efficient to proceed directly to briefing where factual disputes can be resolved. Additionally, the parties propose a deadline for motions to compel. The deadline is permitted; however, parties should file motions to compel when they have reached an impasse rather than at a pre-set date. The parties are encouraged to work together to ensure that deadlines can be met and to find ways to be more efficient, such as stipulating to facts in the proceeding.

The parties are hereby **ORDERED** to follow this schedule:

July 3, 2025 Service of initial discovery requests.

August 4, 2025 Deadline for production of documents, and any written responses and objections in response to initial discovery requests.

August 20, 2025 Deadline for motions to compel.

September 15, 2025 Parties identify experts and provide expert reports to each other.
Parties file joint status report as discussed above.

September 30, 2025 Deadline for completion of non-expert depositions.

October 20, 2025 Close of discovery.

The parties are encouraged to discuss settlement of this proceeding. However, such discussion will not stay other deadlines in the proceeding as engaging in discovery could provide evidence that assists the parties in resolving their differences, while delays hinder the parties' progress. If a settlement is reached, the parties must file a motion requesting approval of it along with a copy of the settlement. 46 C.F.R. § 502.72(a)(3).

Motions and settlement discussions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Any filing submitted without clear indication of whether it is public or confidential or submitted without page numbers, including on exhibits, may be rejected. Rules regarding briefs impose page limits, content requirements, and note that the presiding officer will determine the time and manner of filing briefs and any enlargement of time. 46 C.F.R. § 502.214.

The parties are required to submit the legal and factual basis for their arguments and the evidence upon which they rely during briefing. The parties' briefing and appendices shall be in the following form.

Briefing

1. **[Party's] Brief [Confidential or Public]**. Each party shall file a brief meeting the requirements of Commission Rule 214, (46 C.F.R. § 502.214), with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).

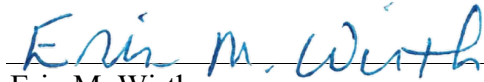
2. **[Party's] Proposed Findings of Fact [Confidential or Public].** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact [Confidential or Public].** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix [Confidential or Public].** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix which complies with the next section.

Appendix of Exhibits

5. The cover of the appendix shall identify the party or parties that prepared the appendix and whether the filing is a public or confidential version.
6. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially with a unique prefix, for example CX 1, CX 2 for Complainant's exhibits and RX 1, RX 2, etc. for Respondent's exhibits. If there are multiple Respondents, they must use different prefixes, so that no bates numbers are repeated in the record.
7. Bates numbers should not be repeated, for example, if a first appendix runs from RX 1 to RX 158, a later submitted appendix should be labeled beginning with RX 159, RX 160, etc.
8. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example, by a cover sheet and bookmark.
9. References to a party's appendix in briefing must match the bates stamp applied to the exhibit page, the one exception being that omitting leading zeroes is preferred. (For example, if an appendix page is stamped RX-00059, it is appropriate to refer to this page in briefing as RX 59 but not as R 59.)

10. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.
11. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7).

The Initial Order has additional requirements, including for submitting confidential material. The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.


Erin M. Wirth
Chief Administrative Law Judge